SERIES B TERM SHEET — EXECUTED

Transaction

Pre-money valuation: $132,000,000.00.

Aggregate financing: $38,000,000.00.

Post-closing option reserve target: 13.500%.

Initial funding date: 2026-09-15.

This executed instrument supersedes prior drafts upon signature by both parties.

Evidence

Signature date controls. The body controls over exhibits.

Closing, Conditions, and General Terms

Term Sheet Series B v5 EXECUTED addresses closing deliverables, required corporate and class approvals, definitive-document preparation, expenses, confidentiality, exclusivity, governing law, counterpart execution, and expiration.

Draft, redline, competing, exhibit, and executed materials retain distinct status; only the properly signed instrument governs according to the review protocol.

No illustrative capitalization schedule changes an operative provision in the document body without the approvals and amendment process stated there.

Part 1 - Parties, Instrument and Binding Effect

This term sheet records the terms on which Ardent Peak Ventures III, L.P. and the other purchasers identified in the Purchase Agreement (together, the Purchasers) will subscribe for shares of Series B Preferred Stock of Helioscope Robotics, Inc., a Delaware corporation with its principal offices in Fremont, California (the Company). The Company designs, manufactures and services autonomous mobile robots and the fleet orchestration software that coordinates them for distribution and fulfilment operators.

Except for Part 18 (confidentiality), Part 19 (exclusivity) and Part 17 (expenses), which the Company and the Purchasers intend to be binding on execution, this sheet states the agreed commercial terms and is to be implemented through the definitive documents described in Part 21. Neither party is obligated to complete the financing until those documents are executed and the conditions in Part 20 are satisfied or waived in writing by the party entitled to the benefit of the condition.

The signature date appearing in the execution block controls the status of this instrument. Prior circulated drafts, comparisons and working papers were prepared for negotiation and have no operative effect, whether or not a provision appearing in one of them is more detailed than the corresponding provision here.

Part 2 - Security, Aggregate Investment and Use of Proceeds

The security offered is Series B Preferred Stock, a new series of the Company's preferred stock to be created by the Amended and Restated Certificate of Incorporation described in Part 21. The aggregate investment, the price per share and the allocation of the aggregate investment among the Purchasers are those set out in the pricing terms of this sheet and carried into the Purchase Agreement; the price per share is the Original Issue Price for the Series B Preferred Stock and is the reference point for every provision in this sheet that speaks of that price.

The Original Issue Price is derived from the pre-money valuation stated in the pricing terms and the fully diluted capitalization determined under Part 4, and applies without adjustment to shares issued at the Subsequent Funding described in Part 3. No Purchaser receives a different price, a rebate, a fee, or any economic accommodation not set out in this sheet.

Proceeds are to be applied to manufacturing capacity, field service coverage, the orchestration software roadmap, safety certification of the current robot platform, and general working capital, in each case consistent with the annual operating plan approved by the Board of Directors. The Company will not apply proceeds to redeem or repurchase equity from any holder, other than repurchases of unvested shares at cost on a termination of service, without the approval required under Part 9.

Part 3 - Tranching and the Subsequent Funding Condition

The investment is funded in two tranches. The first tranche funds at the Initial Closing against satisfaction of the conditions in Part 20. The balance funds at the Subsequent Funding, at the same price per share, on satisfaction of the single operating condition stated in the pricing terms and measured on the test date stated there, as certified by an officer of the Company with the supporting metric schedule attached to the certificate.

The operating condition is measured once, on the stated test date, using the revenue recognition policy applied in the Company's most recent audited financial statements and without pro forma adjustment for contracts signed but not yet in service. If the condition is satisfied, each Purchaser is obligated to fund its allocation of the second tranche. If it is not satisfied, the obligation lapses, and the Purchasers may nonetheless elect to fund in whole or in part on the same terms by written notice to the Company.

A Purchaser that fails to fund its allocation at the Subsequent Funding when obligated to do so is subject to the consequence stated in Part 14 and, in addition, forfeits the designation and consent rights that this sheet confers on it individually. The Company may not waive the operating condition, extend the test date, or accept a substitute metric without the approval required under Part 9.

Part 4 - Capitalization and Treatment of the Option Reserve

The price per share is computed on a fully diluted, pre-money basis. The fully diluted capitalization includes all outstanding shares of Common Stock, all shares of Common Stock issuable on conversion of each outstanding series of Preferred Stock, all shares issuable on conversion of each outstanding convertible note and simple agreement for future equity that converts in connection with this financing, all shares subject to outstanding options and other equity awards, all shares reserved and unissued under the Company's equity incentive plan, and the increase in that reserve described in the following paragraph.

The reserve increase is sized as the stated percentage of the post-financing fully diluted capitalization, counting only unissued reserved shares toward the target, and is included in the pre-money fully diluted capitalization for pricing purposes. The increase is sized on the capitalization as it stands at the Initial Closing and not on any later or fully funded view of the capitalization. Where an illustration attached to or circulated with this sheet is prepared on a different basis, this Part controls.

Warrants outstanding as of the Initial Closing are included on the basis stated in the pricing terms, and the Company will deliver an instrument-level schedule supporting that treatment with the capitalization certificate. Awards that remain subject to an unmet performance condition are excluded until the condition is satisfied. The Company will reconcile its equity award ledger to the capitalization certificate before the Initial Closing and will disclose any unreconciled item.

Part 5 - Dividends

The Series B Preferred Stock carries a cumulative dividend accruing on the Original Issue Price at the rate stated in the pricing terms, compounding on the basis stated there. Accrued and unpaid dividends are added to the amount payable on a liquidation or Deemed Liquidation Event under Part 6 and are payable in the circumstances the charter specifies, whether or not declared and whether or not there are funds lawfully available for their payment at the time of accrual.

For a period beginning or ending other than on an anniversary of the Original Issue Date, the dividend accrues on the day count convention stated in the pricing terms. The Company will not declare or pay a dividend or make any other distribution on the Common Stock, and will not declare or pay a dividend on any other series of Preferred Stock other than in accordance with its terms, unless the accrued dividend on the Series B Preferred Stock is paid or provided for first.

The dividend is not payable in shares, and no holder may elect to convert an accrued dividend into additional shares of Series B Preferred Stock. On a conversion of Series B Preferred Stock into Common Stock, the treatment of the accrued but unpaid dividend is the treatment the charter specifies, and the Purchase Agreement will not vary it.

Part 6 - Liquidation Preference, Participation and Deemed Liquidation

On a liquidation, dissolution or winding up of the Company, the holders of Series B Preferred Stock are entitled to receive, before any distribution to the holders of any junior series or of Common Stock, the amount stated in the pricing terms as a multiple of the Original Issue Price, plus all accrued and unpaid dividends. The Series B Preferred Stock ranks senior to the Series A Preferred Stock and the Series Seed Preferred Stock, which rank equally with one another in the tranche below it.

After payment of the preference amounts in order of rank, the holders of Series B Preferred Stock participate with the holders of Common Stock in the distribution of the remaining assets on an as-converted basis, until the aggregate amount received by a holder in respect of a share reaches the participation cap stated in the pricing terms. A holder that would receive more by converting to Common Stock and sharing rateably may elect that treatment instead, and the election is made share by share.

If the assets available are insufficient to pay the preference amounts of a tranche in full, they are distributed among the holders in that tranche in proportion to the full amounts each would otherwise be entitled to receive, and no distribution is made to a junior tranche. A Deemed Liquidation Event includes a merger or consolidation in which the Company is not the surviving entity or in which its outstanding shares are converted, and a sale, lease, exclusive licence or other disposition of all or substantially all of the Company's assets, in each case as the charter defines those events.

Non-cash consideration is valued as the charter provides, and a merger or consolidation is treated as effected under the merger provisions of the Delaware corporation statute (8 Del. C. § 251). Amounts placed in escrow or subject to a holdback are treated as received only when released, and the management carve-out described in the pricing terms is applied to the proceeds base the charter identifies before the preference amounts are computed.

Part 7 - Conversion, Mandatory Conversion and Anti-Dilution

Each share of Series B Preferred Stock is convertible at the option of the holder at any time into shares of Common Stock at the Applicable Conversion Price then in effect, initially equal to the Original Issue Price. Conversion is effected by notice and surrender of the certificate or by book-entry instruction, is effective on delivery, and no fractional share is issued; the Company pays cash in lieu of a fraction on the basis the charter specifies.

All outstanding shares of Series B Preferred Stock convert automatically on the closing of an underwritten public offering that satisfies the thresholds stated in the pricing terms, and on the written election of the requisite holders of the series voting as a separate class. Automatic conversion does not extinguish an accrued dividend except as the charter provides, and the Company will reserve at all times a sufficient number of shares of Common Stock to effect conversion of all outstanding shares of Series B Preferred Stock.

The Applicable Conversion Price is subject to proportional adjustment for stock splits, combinations, stock dividends, recapitalizations and reclassifications, and to adjustment on a Dilutive Issuance in accordance with the adjustment formula designated for the series in the charter and the Purchase Agreement. The categories of Excluded Issuances, the definition of Additional Shares of Common Stock and the readjustment on expiry of unexercised options or convertible securities are those the charter sets out in the designation adopted for the series under the Delaware provision authorizing classes and series (8 Del. C. § 151). Where more than one dilutive event occurs on the same date, the charter's ordering rule governs the sequence of the adjustments.

Purchase price framework

Pre-money valuation: $132,000,000.00.

Aggregate financing: $38,000,000.00.

Part 8 - Redemption

The Series B Preferred Stock is redeemable at the written election of the requisite holders of the series, given no earlier than the date stated in the pricing terms and at the redemption amount stated there. The election is exercised by notice to the Company specifying the redemption date, and the Company must effect the redemption on that date to the extent of funds lawfully available for the purpose.

If the funds lawfully available are insufficient to redeem all shares as to which the right has been exercised, the Company redeems shares rateably among the electing holders and the unredeemed balance remains outstanding with the obligation continuing, so that the Company applies funds to the redemption as and when they become lawfully available without a further election. Shares redeemed are retired and may not be reissued.

The redemption right does not entitle a holder to accelerate any other payment, and the exercise of the right by some holders does not oblige any other holder to participate. A waiver of the right on one occasion, whether by an individual holder or by the requisite holders, does not waive it on any later occasion.

Part 9 - Voting Rights and Protective Provisions

The Series B Preferred Stock votes with the Common Stock on an as-converted basis on all matters submitted to the stockholders, and votes as a separate class where the charter or applicable law so requires. The protective provisions in this Part are exercised on a class basis, meaning the vote or written consent of the requisite holders of the Series B Preferred Stock voting as a separate class, and not by a vote of the Preferred Stock as a whole.

The Company will not, without that class approval, amend the charter or the bylaws in a manner that affects the Series B Preferred Stock; create or authorize any equity security senior to or on a parity with the Series B Preferred Stock; increase or decrease the authorized number of shares of any series of Preferred Stock; redeem or repurchase any equity security other than a repurchase of unvested shares at cost on a termination of service; declare or pay a dividend other than as Part 5 permits; effect a Deemed Liquidation Event; liquidate or dissolve; change the authorized size of the Board of Directors; incur indebtedness above the threshold stated in the pricing terms; adopt or amend an equity incentive plan or increase the shares reserved under it; enter into a transaction with an affiliate or a holder of more than a stated interest; or change the Company's line of business.

The list in this Part also includes approval of the annual operating budget and the hiring or termination of a senior executive reporting to the Chief Executive Officer. A waiver of a protective provision is effective only if given in writing by the requisite holders of the series, is limited to the matter described in the waiver, and expires on the date the waiver states; a waiver that has expired does not authorize a later action of the same kind.

Capitalization and reserve

Post-closing option reserve target: 13.500%.

Initial funding date: 2026-09-15.

Part 10 - Board Composition, Committees and Observer

The Board of Directors is constituted, and its authorized size fixed, in the manner the charter, the bylaws and the Voting Agreement provide. Designation rights are allocated by class: the holders of Series B Preferred Stock voting as a separate class designate their director or directors, the holders of Series A Preferred Stock designate theirs, the holders of Common Stock designate theirs including the person then serving as Chief Executive Officer, and the remaining seat or seats are filled by a person mutually acceptable to the Common and Preferred designees.

The Board will maintain an audit committee and a compensation committee, each including at least one director designated by the holders of Preferred Stock. The Board will meet at least quarterly, and the Company will deliver the board package at a reasonable interval before each meeting. Directors are reimbursed for reasonable travel expenses incurred in attending meetings.

Kadence Industrial Holdings is entitled to designate one observer to attend meetings of the Board in a nonvoting capacity, to receive the materials distributed to directors at the same time they are distributed, and to be excluded from an

executive session or from a matter where attendance would jeopardize privilege or create a competitive conflict. The observer is not a director, is not counted for quorum, and executes a confidentiality undertaking before attending.

Preference and participation

The Series B original issue price is determined under the executed financing terms. Participation cap multiple: 3.0.

Management carve-out: 4.00% of the applicable proceeds base.

Part 11 - Drag-Along

On approval of a Sale of the Company by the Board of Directors and by the requisite holders identified in the Voting Agreement, each holder of Common Stock and Preferred Stock party to that agreement will vote in favour of the transaction, refrain from exercising the appraisal or dissenters' rights available to a stockholder under Delaware law (8 Del. C. § 262), execute the definitive documents, and sell the same proportion of each class of shares held on the terms approved.

The obligation is conditioned as the Voting Agreement provides: consideration allocated in accordance with the charter, representations limited to title, authority and organization, liability that is several and not joint and capped at the proceeds actually received other than in the case of fraud, no restrictive covenant imposed on a holder who is not an employee, and reimbursement of the holders' reasonable expenses. A transaction with an affiliate of the approving holders is excluded unless the Board follows the process the Voting Agreement specifies.

Part 12 - Information, Inspection and Reporting Rights

Each Major Investor, meaning a holder of at least the number of shares of Capital Stock stated as the threshold in the Investors' Rights Agreement, is entitled to annual audited financial statements, quarterly unaudited statements, monthly management accounts, the annual budget and operating plan as approved by the Board, and a current capitalization table. The basis of preparation for each report is stated in that agreement.

Each Major Investor is entitled to inspect the Company's books, records and facilities, in addition to the inspection right a stockholder has by statute (8 Del. C. § 220), at reasonable times on reasonable notice and for a purpose reasonably related to its investment, subject to the trade secret and legal privilege carve-out in the Investors' Rights Agreement. The Company may withhold delivery from a holder that is a competitor, applying the definition of competitor in that agreement, and will notify the holder when it does so.

The Company will notify the holders of Preferred Stock promptly of the commencement of material litigation, a default under indebtedness, the loss of a customer representing a material share of recurring revenue, a safety incident involving a deployed robot, and any change in the Company's independent accountants. These rights terminate on the closing of a qualified public offering.

Governance and protective provisions

The Board consists of 7 seats under the proposed financing structure.

Major Investor threshold: 1,500,000 shares of Capital Stock.

Part 13 - Registration Rights

The Purchasers receive demand, piggyback and short-form registration rights on the terms set out in the Investors' Rights Agreement, exercisable in respect of registrable securities under the Securities Act of 1933, as amended. The agreement fixes the number of demand registrations, the eligibility and frequency conditions for a registration on Form S-3 or any successor short-form registration statement, and the minimum aggregate offering size for a demand.

Underwriter cutbacks apply in the priority the Investors' Rights Agreement specifies, with reductions taken pro rata within a class. The Company bears the registration expenses and the selling holders bear the underwriting discounts and selling commissions, with one counsel for the selling holders reimbursed up to the cap that agreement states. Indemnification, contribution and the market standoff undertaking are on the terms of that agreement.

The Company will also comply with the reporting and information undertakings that agreement imposes in order to preserve the availability of the resale safe harbour for restricted securities, as promulgated by the Commission (17 C.F.R. § 230.144), and will furnish the written statements a holder needs in order to rely on it. Shares issued in this financing are issued in a private placement in reliance on the exemption for transactions not involving a public offering (15 U.S.C. § 77d(a)(2)) and the safe harbour for offers and sales to accredited investors (17 C.F.R. § 230.506(b)).

Part 14 - Pro Rata Participation and Pay-to-Play

Each Major Investor has the right to participate in a subsequent issuance of new securities by the Company up to its pro rata share, calculated as that share is defined in the Investors' Rights Agreement, on the offer notice and election mechanics that agreement sets out. The right does not apply to the categories of excluded issuances listed there. The entitlement is limited to the holder's pro rata share as so defined.

The pay-to-play provision operates holder by holder. A holder of Series B Preferred Stock that does not purchase its full pro rata share of a qualifying subsequent financing has its shares of Series B Preferred Stock converted into shares of a shadow series carrying the reduced rights the charter specifies for that series, with the conversion effective at the closing of the financing and applying only to the non-participating holder.

Participation is measured against the holder's own pro rata share and is not aggregated across unaffiliated holders, so one holder's shortfall does not affect another holder's status. Affiliated funds within a single fund family are aggregated for the purpose of measuring participation, in accordance with the aggregation rule in the Investors' Rights Agreement.

Closing and subsequent funding

Initial closing: 2026-09-15.

Subsequent funding date: 2027-07-01 subject to the stated operating condition.

Part 15 - Right of First Refusal and Co-Sale

Transfers of shares by the Key Holders are subject to a right of first refusal in favour of the Company, a secondary refusal right in favour of the Investors, and a co-sale right, on the notice and election mechanics set out in the Right of First Refusal and Co-Sale Agreement. That agreement identifies the permitted transfers that are exempt from these rights and the conditions attached to them.

A purported transfer made in violation of those rights is void, will not be recorded in the stock ledger, and gives the aggrieved Investor the put remedy that agreement provides, a restriction on transfer of the kind Delaware law permits a corporation to impose (8 Del. C. § 202). Certificates and book-entry notations carry the legend that agreement prescribes, and the Company will instruct its transfer agent and its capitalization platform of record accordingly.

Part 16 - Founder Vesting, Acceleration and Key-Person Undertakings

The shares and awards held by each of Renata Okonjo, Dashiell Vance and Lucia Marchetti are subject to the vesting schedule stated in the pricing terms, commencing on the date stated there, with the credit for prior service stated there. Unvested shares are repurchasable by the Company at cost on a termination of service, and the repurchase right lapses as to shares that vest.

Acceleration on a change of control operates on the double-trigger construction: vesting accelerates only if the holder's service is terminated without cause or the holder resigns for good reason within the window following the change of control stated in the definitive documents. Definitions of cause and good reason are those in the applicable award agreement, and no single-trigger acceleration applies to any founder.

Each founder will execute the Company's confidential information and invention assignment agreement, will devote substantially all business time to the Company, and will not solicit the Company's employees or customers for the period the award agreement states. The Company will not amend an award agreement to alter a vesting schedule or an acceleration provision without the approval required under Part 9.

Transaction record 1

Investor Pro-Rata Top-Up Right

The v4 REDLINE inserts an investor pro-rata top-up right that is struck out again before v5 EXECUTED; the right never survives to signature.

The reviewer should reconcile this record with the applicable source-of-record instrument and effective-date hierarchy before downstream use.

Part 17 - Insurance, Indemnification and Expenses

The Company will maintain directors' and officers' liability insurance with a carrier and in an amount approved by the Board of Directors including the directors designated by the holders of Preferred Stock, and will not permit the policy to lapse or be materially amended without that approval. The Company will enter into an indemnification agreement in the agreed form with each director then serving and with each director designated after the Initial Closing.

The Company will pay the reasonable fees and expenses of one counsel to the Purchasers incurred in connection with the financing, without the cap the Company proposed during negotiation, and will pay those fees whether or not the financing is completed, subject to the break arrangement stated in the pricing terms. Each party otherwise bears its own costs, and the Company bears the cost of its own counsel, its accountants and its transfer agent.

Transaction record 2

$182,000,000

The executed term sheet is delivered as an image-only scan; the machine text layer on the signature-context page has a corrupted digit in the pre-money figure.

The reviewer should reconcile this record with the applicable source-of-record instrument and effective-date hierarchy before downstream use.

Part 18 - Confidentiality, Publicity and Announcement

The existence and terms of this sheet are confidential. The Company may disclose them to its directors, officers, counsel and accountants, to its existing holders of Preferred Stock to the extent their consent is required, and as required by law or by an order of a court or regulator, in which case it will notify the Purchasers before disclosing where it is lawful to do so.

No party will issue a press release or make a public statement about the financing without the prior written approval of the Company and the lead Purchaser as to content and timing. After the Initial Closing, the lead Purchaser may identify the Company as a portfolio company and use its name and logo in customary investor materials, and the Company may name the lead Purchaser in customer-facing materials with its consent.

Part 19 - Exclusivity and No-Shop

From the signature date until the end of the exclusivity period stated in the pricing terms, the Company will not, and will direct its officers, directors, employees, agents and advisers not to, solicit, initiate, encourage or entertain any offer, inquiry or proposal relating to the sale or issuance of equity or equity-linked securities of the Company, the sale of all or substantially all of its assets, or any merger, recapitalization or similar transaction, other than with the Purchasers.

The Company will notify the lead Purchaser promptly if it receives an unsolicited approach of that kind, describing the identity of the party and the material terms proposed. The exclusivity obligation ends before the stated period expires if the Purchasers notify the Company in writing that they have terminated discussions or if the Purchasers fail to fund the first tranche when the conditions in Part 20 have been satisfied.

The exclusivity obligation does not restrict the Company from continuing to operate its business in the ordinary course, from issuing equity awards under its equity incentive plan as amended, from drawing on an existing debt facility in accordance with its terms, or from having discussions with an existing holder about the consents this financing requires.

Transaction record 3

$28,000,000

The executed term sheet's machine text layer has a second corrupted digit, this time in the round size, on a different page.

The reviewer should reconcile this record with the applicable source-of-record instrument and effective-date hierarchy before downstream use.

Part 20 - Conditions Precedent to the Initial Closing

The obligation of the Purchasers to fund the first tranche is subject to: execution and delivery of the definitive documents described in Part 21; the filing and acceptance of the Amended and Restated Certificate of Incorporation by the Secretary of State of the State of Delaware; the receipt of every corporate approval the financing requires, including the vote of each class whose consent the charter requires, whether given at a meeting or by written consent in lieu of a meeting (8 Del. C. § 228), and specifically the consent of the holders of Series A Preferred Stock to the creation of a senior series; and the accuracy in all material respects of the Company's representations as of the Initial Closing.

The remaining conditions are: delivery of the capitalization certificate and the reconciled equity award ledger contemplated by Part 4; conversion of each outstanding convertible instrument in accordance with its own terms, with conversion instructions and acknowledgements delivered for each; delivery of the legal opinion of Company counsel; delivery of the secretary's certificate, good standing and qualification certificates; the absence of any injunction or proceeding that would prevent the financing; and the absence of a material adverse change in the Company's business since the date of the most recent audited financial statements.

The list in this Part is the authoritative list of conditions to the Initial Closing. An item that appears in a negotiating log, an internal checklist or a diligence tracker is not a condition to closing unless it appears here. A condition may be waived only in writing, only by the party entitled to the benefit of it, and a waiver of a condition at the Initial Closing does not waive the corresponding condition at the Subsequent Funding. Schedule 1 records who is responsible for each closing deliverable and its status as at the signature date.

Schedule 1 - Closing deliverables, responsible party and form

Deliverable	Responsible party	Form	Required at	Status at signature
Amended and Restated Certificate of Incorporation, filed and stamped	Company	Filed certificate with Delaware acknowledgement	Initial Closing	Draft circulated
Series B Preferred Stock Purchase Agreement	Company and Purchasers	Executed original, counterparts permitted	Initial Closing	In preparation
Disclosure schedules to the Purchase Agreement	Company	Schedules keyed to representation numbering	Initial Closing	Outstanding
Investors' Rights Agreement	Company, Purchasers, prior holders	Executed original with schedule of investors	Initial Closing	In preparation
Voting Agreement	Company, Key Holders, Investors	Executed original with Schedules A and B	Initial Closing	In preparation
Right of First Refusal and Co-Sale Agreement	Company, Key Holders, Investors	Executed original with joinder form	Initial Closing	In preparation
Board resolutions approving the financing	Company	Certified resolutions of the Board of Directors	Initial Closing	Approved in principle
Stockholder consent, including each required class vote	Company	Written consent with certification of the vote	Initial Closing	Solicitation pending
Series A class consent to the senior designation	Company	Written consent of the holders of Series A Preferred	Initial Closing	Outstanding
Series Seed class consent where required by the charter	Company	Written consent of the holders of Series Seed Preferred	Initial Closing	Outstanding
Secretary's certificate as to charter, bylaws and incumbency	Company	Officer certificate with exhibits attached	Initial Closing	Form agreed
Good standing certificate from the State of Delaware	Company	Long-form certificate of good standing	Initial Closing	Ordered
Qualification certificate for the State of California	Company	Certificate of qualification to transact business	Initial Closing	Ordered
Legal opinion of Company counsel	Company counsel	Opinion addressed to the Purchasers	Initial Closing	Scope under discussion

Deliverable	Responsible party	Form	Required at	Status at signature
Capitalization certificate as of immediately prior to the Initial Closing	Company	Officer certificate with capitalization exhibit	Initial Closing	To be prepared
Conversion instructions and payoff confirmations for each convertible instrument	Company	Instrument-by-instrument instruction letters	Initial Closing	In preparation
Warrant acknowledgements from each venture debt holder	Company	Countersigned acknowledgement letters	Initial Closing	Requested
Plan amendment evidencing the reserve authorized for the financing	Company	Amendment with adoption and approval record	Initial Closing	Executed
Equity award ledger reconciled to the capitalization certificate	Company	Ledger extract certified by an officer	Initial Closing	Reconciliation open
Indemnification agreements with each director then serving	Company	Executed agreements in the agreed form	Initial Closing	Form agreed
Confidential information and invention assignment agreements for all personnel	Company	Countersigned agreements, exceptions scheduled	Initial Closing	Exceptions being cleared
Directors' and officers' liability insurance binder	Company	Binder or endorsement from the approved carrier	Initial Closing	Quotations received
Management rights letter to each Purchaser that requests one	Company	Countersigned letter per Purchaser	Initial Closing	Form agreed
Wire instructions certified by an officer and confirmed by callback	Company	Certified instructions plus verbal confirmation	Initial Closing	Procedure agreed
Cross-receipt for the purchase price and the shares issued	Company and Purchasers	Mutual cross-receipt	Initial Closing	Form agreed
Stock ledger and book-entry notations updated on the platform of record	Company	Platform extract with legend notation	Promptly after Initial Closing	Instruction drafted
Federal and state securities filings for the private placement	Company counsel	Notice filings in each applicable jurisdiction	Promptly after Initial Closing	Assigned
Officer certificate as to the operating condition for the Subsequent Funding	Company	Certificate with supporting metric schedule	Subsequent Funding	Not yet due
Reaffirmation of representations at the Subsequent Funding	Company	Bring-down certificate with updated schedules	Subsequent Funding	Not yet due
Updated capitalization certificate at the Subsequent Funding	Company	Officer certificate with capitalization exhibit	Subsequent Funding	Not yet due

Part 21 - Definitive Documents and Preparation Responsibility

The definitive documents are the Series B Preferred Stock Purchase Agreement with its disclosure schedules, the Amended and Restated Certificate of Incorporation, the Investors' Rights Agreement, the Voting Agreement, the Right of First Refusal and Co-Sale Agreement, the indemnification agreements, and the management rights letters. Counsel to the Purchasers prepares the first draft of each document other than the disclosure schedules and the capitalization certificate, which the Company prepares.

Where a term in this sheet is expressed by reference to a definitive document, the parties will implement it in that document consistently with this sheet, and will not use the drafting of a definitive document to alter an agreed term. If a definitive document as executed conflicts with this sheet, the executed definitive document governs from its own effective date, and the conflict is to be reported to the Board of Directors.

The Company will deliver the disclosure schedules a reasonable period before the Initial Closing so that the Purchasers may review them, and will supplement them up to the Initial Closing. A supplement that discloses a matter

first arising after the signature date does not by itself cure a breach of a representation for the purpose of the closing condition in Part 20.

Part 22 - Expiration, Entire Terms, Governing Law and Counterparts

This sheet expires, and the offer it records lapses, if it is not executed by the Company and the lead Purchaser on or before the expiration date stated in the execution block. Once executed, it remains the statement of agreed terms until the definitive documents are executed or the parties terminate discussions in writing.

This sheet states the whole of the agreed commercial terms. A term that is not set out here is not part of the agreed terms, whether or not it appeared in an earlier circulated draft, in a comparison of drafts, in correspondence between counsel, or in a competing proposal from another firm. Amendment of this sheet requires a writing signed by the Company and the lead Purchaser.

The internal affairs of the Company are governed by the General Corporation Law of the State of Delaware. This sheet, and the binding Parts identified in Part 1, are governed by the laws of the State of Delaware, and the parties submit to the exclusive jurisdiction of the state and federal courts sitting in that State for any dispute arising out of them. This sheet may be executed in counterparts, including by electronic signature, each of which is an original and all of which together constitute one instrument.